



**UNITED STATES DEPARTMENT OF EDUCATION
OFFICE FOR CIVIL RIGHTS**

230 SOUTH DEARBORN ST., 37TH FLOOR
CHICAGO, IL 60604

REGION V
ILLINOIS
INDIANA
IOWA
MINNESOTA
NORTH DAKOTA
WISCONSIN

September 8, 2023

Dr. Mung Chiang
President
Purdue University Global
Sent by email only to president@purdue.edu

RE: OCR Docket #05-23-2190

Dear Dr. Chiang:

The U.S. Department of Education (Department), Office for Civil Rights (OCR), has completed its resolution activities in connection with this complaint filed against Purdue University Global (University), alleging discrimination on the basis of disability and also alleging retaliation.

Specifically, the complaint alleges the following:

1. during the fall 2022 semester, the University discriminated against an undergraduate student (Student A) on the basis of disability when it failed to provide Student A with necessary academic adjustments in her Survey of Mathematics (MM150) course;
2. during the spring 2023 semester, the University discriminated against Student A on the basis of disability when it failed to provide Student A with necessary academic adjustments in her College Composition II (CM220) course; and
3. in February 2023, the University retaliated against Student A for advocating on behalf of herself as a student with a disability when the University edited her Letter of Accommodations (LOA) without her participation.

OCR is responsible for enforcing Section 504 of the Rehabilitation Act of 1973 (Section 504), 29 U.S.C. § 794, and its implementing regulation, 34 C.F.R. Part 104, which prohibits discrimination on the basis of disability in programs or activities operated by recipients of federal financial assistance from the Department. OCR is also responsible for enforcing Title II of the Americans with Disabilities Act of 1990 (Title II), 42 U.S.C. §§ 12131 - 12134, and its implementing regulation at 28 C.F.R. Part 35, which prohibits discrimination on the basis of disability by public entities. These laws also prohibit retaliation. As a recipient of federal financial assistance and a public entity, the University is subject to these laws.

During its investigation, OCR reviewed documentation provided by the Complainant and the University and interviewed Student A and University personnel. OCR has determined that there

The Department of Education's mission is to promote student achievement and preparation for global competitiveness by fostering educational excellence and ensuring equal access.

www.ed.gov

is insufficient evidence to establish a violation of the applicable regulations regarding Allegation #3 in this complaint. Prior to the completion of OCR's investigation, the University expressed an interest in resolving Allegations #1 and #2 and signed the enclosed resolution agreement (Agreement) to resolve the allegations pursuant to Section 302 of OCR's *Case Processing Manual* (CPM). The bases for OCR's determinations are set forth below.

Allegations #1 and #2

Legal Standards

The regulation implementing Section 504, at 34 C.F.R. § 104.4(a), provides that no qualified individual with a disability shall, on the basis of disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a recipient, or be subjected to discrimination by a recipient of federal financial assistance. The Title II implementing regulation, at 28 C.F.R. § 35.130(a), provides that no qualified individual with a disability shall, on the basis of disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any public entity.

The Section 504 implementing regulation, at 34 C.F.R. § 104.44(a), requires a recipient to make such modifications to its academic requirements as are necessary to ensure that such requirements do not discriminate or have the effect of discriminating, on the basis of disability, against a qualified student with a disability. Modifications may include changes in the length of time permitted for the completion of degree requirements, substitution of specific courses required for the completion of degree requirements, and adaptation of the manner in which specific courses are conducted.

The Title II regulation, at 28 C.F.R. § 35.130(b)(7), states that a public entity shall make reasonable modifications in policies, practices, or procedures when the modifications are necessary to avoid discrimination on the basis of disability, unless the public entity can demonstrate that making the modifications would fundamentally alter the nature of the service, program, or activity.

Facts

Under the University's policies and procedures, available [here](#), students with disabilities seeking academic adjustments are to contact the University's Student Accessibility Services (SAS) office. A student seeking academic adjustments is responsible for providing SAS with medical documentation of the disability and the need for the requested academic adjustments. Once SAS establishes eligibility, SAS notifies the student's instructors of the specific academic adjustments approved by the University. If any requests are denied, SAS provides the student the reason(s) for such denials.

In August 2022, Student A began classes as an undergraduate student at the University, which provides courses exclusively in an online learning environment. On August 22, 2022, after Student A contacted the University to inquire about how to apply for academic adjustments, SAS

provided Student A with instructions on how to do so. On September 14, 2022, Student A requested several academic adjustments from SAS; on September 21, SAS granted some of the requested academic adjustments, including double time on timed assessments.

MM150 course

Student A was enrolled in MM150 during the term that ran from November 9, 2022, through January 24, 2023. Student A asserted to OCR that she did not receive double time to take her quizzes as approved by SAS.

The MM150 instructor (Professor A) explained that all students received two hours to complete each of five quizzes during MM150, but that many students finished in approximately 30 minutes. Professor A told OCR that Student A submitted her quizzes before the two hours was up, finishing quizzes in anywhere from 27 minutes to one hour and 52 minutes, with three of the quizzes taking her more than an hour and a half. Student A told OCR that she often ran out of time when taking the quizzes.

The manager of SAS (Manager) said that at the time Student A took MM150, if a course used a third-party portal to administer quizzes or exams, the instructor was responsible for manipulating the time in the testing site. Student A's September 2022 LOA stated that the extra time for testing "does not apply to external quizzes/exams if the instructor is unable to manipulate the time." It also said, in the case of exams offered through a portal external to the University, that "no further action is required by the instructor or student for carrying out [the academic adjustment of double time on timed quizzes and exams], unless exams are held through external sites such as MyMathLab, etc. and time can be manipulated." Professor A said she usually goes in and adds time for her student upon receipt of an LOA, but she was not certain if she did so for Student A; she said she could not check because the University no longer uses the third-party testing portal that it used for MM150.

The Manager said the University in 2023 designated an individual in the Curriculum Department to manipulate time in third party portals and to ensure that instructors have adjusted the time if required by a student's LOA. This individual was not in this role when Student A was taking MM150.

Student A initially received a failing grade in MM150 but was then granted an incomplete in the course. After Student A retook quizzes she had missed, her grade was changed to a D. Student A told OCR that during her attempts to retake the quizzes, she was not provided with the required double time. The Manager and Professor A told OCR that Student A was given opportunities to retake quizzes, but neither could verify if she received any extra time to complete them beyond than the two hours provided to her classmates. The University confirmed in a September 1, 2023 email to OCR that they checked the third party testing portal (ALEKS) and at no time was Student A's double time added during any of her attempts to take the MM150 quizzes. The Professor told the University this was an oversight on her part.

CM220 Course

Student A was enrolled in CM220 during a term that ran from February 1 through April 11, 2023. Student A reported to OCR that the University discriminated against her based on disability in CM220 when she was docked points for seminar participation and when SAS denied her request for an academic adjustment in connection with discussion assignments.

On February 28, 2023, Student A submitted a request to SAS to have her LOA amended to add the following academic adjustments: “full participation credit in seminars” and “earn full contribution credit for discussions (one response to one classmate and earn full points).” SAS responded on the same day and granted Student A’s request to receive full participation credit for live seminars.

The instructor for CM220 (Professor B) told OCR that up to 10 seminar participation points could be earned each week by students by either engaging in the live seminar’s chat or providing lecture notes if a student chose to watch the seminar at a later date. If a student was late, did not attend the seminar, or did demonstrate participation, they were docked points. Student A told OCR that Professor B continued to reduce her seminar participation points even after the February 28 LOA amendment, until Student A reached out to the University’s Student Relations office at the end of March 2023 and alerted them to this problem.

Professor B explained to OCR that she was unaware of how the edit to Student A’s LOA impacted the seminar grading until SAS explained it to her midway through the term. Professor B told OCR that she retroactively corrected the grading to give Student A 100% of all possible seminar points. Student A confirmed to OCR that Professor B corrected her grade. Student A told OCR that she found it stressful trying to participate in the live seminars during the time when the professor was still docking her points.

Professor B explained to OCR that every week in CM220, students were required to make one original post on the class discussion board based on the course content and reply to three peer posts; students could earn up to 40 points per week for this. Professor B told OCR that Student A did poorly on her discussion board posts because she did not submit the amount or quality of responses required.

Student A requested to SAS that she be allowed to make only one post each week and to get the full credit for doing so. SAS denied Student A’s request, stating that “approved accommodations do not apply to any group activities. Therefore, accommodations do not apply to discussion board requirements.” SAS did not ask Student A how her disability impacted her ability to complete the discussion board assignments.

The Manager told OCR that she believed Student A could utilize her voice to text software for these assignments and therefore did not need the requested academic adjustment; however, Student A told OCR that her voice to text software did not work for bulletin board posts, so these posts were very difficult for her to complete due to her disability, which limited her ability to type.

The Manager also said Student A's request for academic adjustments related to her discussion board assignments was denied because the assignments were considered a "group activity" in that they involved interactions with peers. The Manager explained that SAS practice is to deny requests for academic adjustments related to group activities.

Analysis and Conclusion

Based on the evidence collected to date, OCR has identified compliance concerns with regard to Allegations #1 and #2.

Although Professor A reported that she believed Student A had sufficient time to complete her MM150 quizzes, Student A denied that she had enough time, and Professor A could not confirm if she manipulated the third-party testing portal to provide Student A with her double time to complete the quizzes. Student A told OCR that at no point in time, during the initial term or when retaking her quizzes after she received an incomplete, was she provided with double time. The University confirmed with the third-party testing portal that Student A's double time was never provided during any of her MM150 quizzes. OCR is also concerned that the current wording in students' LOAs suggested that instructors do not have an obligation to provide extra time for students when using third-party testing portals, although the University asserted that it now has an individual in the Curriculum Department assigned to ensure this is done.

With regard to CM220, the evidence established that the University corrected the alleged failure to provide Student A seminar points prior to the conclusion of the term. However, OCR has concerns regarding the University's response to Student A's request for an academic adjustment related to the CM220 discussion board assignments. Documentation and testimony indicated that the University has a practice of denying academic adjustments for tasks it considers to be group work, rather than making individualized assessments for each student of whether an academic adjustment on such work is needed. The University relied on this practice and a belief, which Student A said was mistaken, that she could use text to speech software for the CM220 discussion assignments as an alternative to receiving her requested academic adjustment.

In accordance with Section 302 of the CPM, a complaint may be resolved at any time when, prior to the conclusion of an investigation, the recipient expresses an interest in resolving the complaint. Prior to the conclusion of OCR's investigation, the University expressed interest in resolving the complaint and signed the enclosed Agreement to resolve the issues raised in Allegations #1 and #2 of this complaint. OCR will monitor the University's implementation of the Agreement.

Allegation #3

Legal Standards

The Section 504 regulation, at 34 C.F.R. § 104.61, incorporates the procedural provisions applicable to Title VI of the Civil Rights Act of 1964 and prohibits a recipient from intimidating, threatening, coercing, or discriminating against an individual for the purpose of interfering with any right or privilege secured by Section 504 or because the individual has made a complaint,

testified, assisted, or participated in any manner in an investigation, proceeding or hearing under the regulation. The Title II regulation, at 28 C.F.R. § 35.134, also prohibits retaliation.

The following three elements must be satisfied to establish a prima facie case of retaliation: (1) an individual engaged in a protected activity; (2) an individual experienced an adverse action caused by the recipient; and (3) there is some evidence of a causal connection between the adverse action and the protected activity. When a prima facie case of retaliation has been established, OCR then determines whether there is a facially legitimate, non-retaliatory reason for the adverse action and, if so, whether the facially legitimate, non-retaliatory reason is a pretext for retaliation.

Facts

Student A asserted that in February 2023, the University retaliated against her for self-advocacy as a student with disabilities when SAS edited her LOA without her participation. Specifically, Student A explained to OCR that new language was added in her February 2023 LOA discussion of extra time for exams that said, “No further action is required by the instructor or student for carrying out this accommodation, unless exams are held through external sites such as MyMathLab, etc. and time can be manipulated.” Student A alleged this edit occurred due to her complaining about not receiving extra time in her MM150 courses.

The University provided OCR with Student A’s complete SAS file. As noted above, Student A’s fall 2022 LOA had the same language as the language in Student A’s spring 2023 LOA about which she expressed concerns.

Analysis and Conclusion

Because the language that Student A identified as retaliatory was included in an LOA prior to the time when Student A complained about the failure to provide her academic adjustments in MM150, the evidence is insufficient to establish a prima facie case of retaliation. Accordingly, the evidence is insufficient to establish that the University retaliated against Student A as alleged.

Overall Conclusion

This concludes OCR’s investigation of the complaint and should not be interpreted to address the University’s compliance with any other regulatory provision or to address any issues other than those addressed in this letter. This letter sets forth OCR’s determination in one OCR case. This letter is not a formal statement of OCR policy and should not be relied on, cited, or construed as such. OCR’s formal policy statements are approved by a duly authorized OCR official and made available to the public.

The complainant may file a private suit in federal court whether or not OCR finds a violation.

Please be advised that the University may not harass, coerce, intimidate, or discriminate against any individual because the individual has filed a complaint or participated in the complaint resolution process. If this happens, that individual may file a complaint alleging such treatment.

Under the Freedom of Information Act, it may be necessary to release this document and related correspondence and records upon request. If OCR receives such a request, we will seek to protect, to the extent provided by law, personally identifiable information, which, if released, could reasonably be expected to constitute an unwarranted invasion of personal privacy.

We wish to thank you and University personnel, and particularly University Counsel [redacted content] and [redacted content], for the cooperation extended to OCR during this investigation. If you have any questions regarding this matter, please contact Laura Paul, OCR Attorney, at 312-730-1546 or by email at laura.paul@ed.gov.

Sincerely,

for Jeffrey Turnbull
Team Leader

cc: [redacted content] (sent via email only to [redacted content])